

		The court orders this settled case dismissed, without prejudice with the court retaining jurisdiction pursuant to CCP § 664.4. Plaintiff shall give notice of this ruling.
52.	Sehgal v. Gokal Law Group, Inc. 2026- 01546794	Defendants Gokal Law Group, Inc. Abbas K. Gokal and Alison S. Gokal's Motion to Compel Arbitration is GRANTED. (Code Civ. Proc. §1281.2.) Plaintiffs Arunpal Sehgal, MD, Gurkipal Singh Segal, MD, and Paramjot Mann, MD shall submit their claims to binding arbitration before JAMS in accordance with the agreement to arbitrate. Defendants have met their burden to demonstrate the existence of a valid agreement to arbitrate that covers Plaintiffs' claims. Specifically, Defendants point to an agreement to arbitrate contained in the agreements for legal services entered into between Gokal Law Group, Inc. and Plaintiffs. The arbitration agreement provides: 11. ARBITRATION OF DISPUTES. THE FIRM APPRECIATES THE OPPORTUNITY TO SERVE AS THE CLIENT'S ATTORNEY AND ANTICIPATE A PRODUCTIVE, HARMONIOUS RELATIONSHIP. <u>IF ANY DISPUTE ARISES BETWEEN CLIENT AND/OR THE FIRM REGARDING SERVICES OR BILLINGS OR ANY OTHER MATTER RELATING TO THE PROVISIONS OR DUTIES UNDER THIS AGREEMENT, INCLUDING BUT NOT LIMITED TO, CLAIMS OF NEGLIGENCE OR MALPRACTICE ARISING OUT OF OR RELATING TO THE LEGAL SERVICES PROVIDED BY THE FIRM TO THE CLIENT, SUCH DISPUTE SHALL BE SUBMITTED TO BINDING ARBITRATION, CONDUCTED IN ORANGE COUNTY, CALIFORNIA, BEFORE A RETIRED JUDGE IN ACCORDANCE WITH THE RULES OF JAMS, THE AMERICAN ARBITRATION ASSOCIATION, OR ANY OTHER ARBITRATION FORUM AGREED TO BY THE CLIENT, AND THE FIRM.</u> ANY FEE DISPUTES SHALL BE ARBITRATED ACCORDING TO GUIDELINES AND STANDARDS ADOPTED BY THE STATE BAR OF CALIFORNIA OR LOCAL BAR ASSOCIATION, IF ANY, THEN IN EFFECT. ANY OTHER DISPUTE SHALL BE ARBITRATED ACCORDING TO THE ARBITRATION RULES OF THE ORANGE COUNTY BAR ASSOCIATION, IF ANY, THEN IN EFFECT; AND IF THERE ARE NO

SUCH RULES IN EFFECT, THEN IN ACCORDANCE WITH THE RULES OF THE AMERICAN ARBITRATION ASSOCIATION.

THE DECISION OF THE ARBITRATOR(S) SHALL BE FINAL AND BINDING. THE ARBITRATOR(S) SHALL HAVE THE DISCRETION TO ORDER THE LOSING PARTY TO REIMBURSE THE PREVAILING PARTY FOR ALL COSTS AND FEES INCURRED IN CONNECTION WITH THE ARBITRATION, INCLUDING ATTORNEYS' FEES AND THE ARBITRATORS' FEES.

IF THE CLIENT OR THE FIRM SHOULD REFUSE TO SUBMIT TO ARBITRATION, SUCH PARTY MAY BE COMPELLED TO ARBITRATE UNDER CALIFORNIA LAW. THE CLIENT AND THE FIRM ACKNOWLEDGE THE FOREGOING AND THAT THIS MUTUAL AGREEMENT FOR BINDING ARBITRATION IS VOLUNTARY.

(See ROA 21 (Larson Decl.) at Exhibits A, B, and C [emphasis added].)

Plaintiffs argue that the clause in the agreement that covered claims are to be submitted to arbitration "in accordance with the rules of JAMS, the American Arbitration Association, or any other arbitration forum agreed to by the client, and the firm" entitles Plaintiffs to refuse to submit their claims to arbitration with JAMS. Plaintiffs' misinterpret the plain language of the clause which only requires additional agreement of the parties if claims are to be arbitrated in a forum other than JAMS or the American Arbitration Association.

Plaintiffs also argue that Abbas Gokal and Alison Gokal do not have standing to enforce the arbitration agreement because they are nonsignatories to the arbitration agreement. However, a nonsignatory may enforce an agreement to arbitrate where the nonsignatory has sufficient identity with a party to the arbitration agreement, such as an agency relationship or an employment relationship. (See *Jenks v. DLA Piper Rudnick Gray Cary US LLP* (2015) 243 Cal.App.4th 1, 8-9.) Here, there is sufficient identity among parties to find that Abbas Gokal and Alison Gokal may enforce the arbitration agreement as non-signatories.

Since Plaintiffs do not raise any argument as to the existence of the agreement to arbitrate or identify any defenses to its enforcement, and the claims alleged in the Complaint are within the scope of the arbitration agreement, Plaintiffs must

		submit their claims to arbitration in accordance with the terms of the arbitration agreement. The case management conference is VACATED. This matter is STAYED pending completion of the arbitration proceedings or until further order of the court. (Code Civ. Proc. §1281.4.) A status conference re: Status of ADR proceedings is set for January 22, 2027 at 9:00 a.m. in this department. Five days before the status conference, the parties are ordered to submit a joint statement describing the status of the arbitration. Defendants shall provide notice of this ruling.
53.	Fernandez v. FCI Lender Services, Inc. 2024-01374564	Plaintiff/Cross-Defendant Virginia Fernandez's Demurrer to the First Amended Cross-Complaint is STRICKEN as untimely. The First Amended Cross-Complaint was filed and served on 10/20/25. (ROA 417.) Cross-Defendant did not file this demurrer until 3/12/26. Therefore, it is untimely as it was not filed within 30 days of the challenged pleading. (Code Civ. Proc., § 430.40(a).) The case management conference is continued to October 12, 2026 at 9:00 a.m. in Department C28. Cross-defendant shall file an answer within 10 days. Defoort shall give notice of this ruling.
54.	Jianan International USA Holdings, Inc. v. USS Cal Builders, Inc. 2025-01506043	Cross-defendant Jianan International USA Holdings, Inc.'s demurrer to USS Cal Builders, Inc.'s Cross-complaint is OVERRULED. (Code Civ. Proc., § 430.10, subd. (e).) Moving party shall file an Answer to the Cross-complaint within 10 days. <u>1st cause of action: breach of contract.</u> This cause of action states sufficient facts. (<i>Oasis West Realty, LLC v. Goldman</i> (2011) 51 Cal.4th 811, 821 [elements]; Cross-complaint, ¶¶ 14, 17-19, Ex. 1 [existence of Subscription Agreement and terms], 16 [performance], 21, 24 [breach], 26 [proximately caused damages].) While moving party contends that the term "assist" in §§ 10.2, 10.4, and 11.2 of the Subscription Agreement is too vague to be enforceable, this cannot be determined on demurrer, particularly as the "assistance" is tied to specific criteria and benchmarks. (See <i>Tiffany Builders, LLC v. Delrahim</i> (2023) 97 Cal.App.5th 536, 544-545 [interpretation of indefinite contract terms].) Further, the alleged breaches are not limited to "assistance." (Cross-complaint, ¶ 19, [alleging